

CMCA GUEST STAY POLICY - AUTHORSHIP, WRONG LAW, AND COMPLAINTS ANALYSIS
Prepared 15 June 2026. Not legal advice - advocacy use only.
Supplements the main analysis (13 June 2026) and addendum (15 June 2026).

SOURCE DOCUMENTS (all verified against originals):

- CMCA Parks Guest Stay Policy (CMCA-GSP-FMB-001 v1.0, April 2026) - Attachment 10.4.2A
- Shire of Boyup Brook OCM 28 May 2026 (unconfirmed), Item 10.4.2, pp 31-36
- Author Carolyn Mallett, EMCS. Council Decision CM 26/05/117, carried 7/0.

1. WHO AUTHORED THE CMCA DOCUMENTS

The CMCA Guest Stay Policy (CMCA-GSP-FMB-001 v1.0) states:

"Prepared By: CMCA Parks"

No individual author is named. The document is a corporate product of CMCA Parks nationally.

The Shire officer report (Item 10.4.2) that presented the CMCA policy to Council was authored by: Carolyn Mallett, Executive Manager Corporate Services (EMCS)

The Consultation section of Item 10.4.2 identifies that the officer report was developed in consultation with:

- "Manager of Business & Development, CMCA" (unnamed in the minutes)
- Chief Executive Officer (Leonard Long)
- Environmental Health Officer (unnamed)

The "Manager of Business & Development, CMCA" is the unidentified CMCA officer who was the primary external party involved in drafting and/or endorsing the policy. Their identity is not disclosed in the council documents. An FOI request to the Shire seeking correspondence between Shire officers and this CMCA officer would likely identify them.

CMCA Parks is a division of Campervan & Motorhome Club of Australia Limited (CMCA), which is the national organisation that entered the MOU with the Shire in April 2022. Their registered details are publicly available via the Australian Business Register and ASIC.

2. THE CRITICAL CONTRADICTION: MALLETT KNEW THE RIGHT LAW

This is the most significant finding from reading the full Item 10.4.2 officer report.

In the Statutory Environment section of her own officer report (p35), Carolyn Mallett listed the following as the applicable legislation:

- Local Government Act 1995 (as amended by the Local Government Amendment Act 2024)
- Caravan Parks and Camping Grounds Act 1995
- Caravan Parks and Camping Grounds Regulations 1997
- Residential Parks (Long-stay Tenants) Act 2006

Mallett therefore knew the Residential Parks (Long-stay Tenants) Act 2006 applied.

Yet the CMCA policy attached to her own item (Attachment 10.4.2A, Section 1 - Purpose) states: "Management reserves the right to enforce these conditions in accordance with the Residential Tenancies Act and applicable caravan park legislation."

The Residential Tenancies Act is NOT listed in Mallett's own Statutory Environment section. The correct Act - the Residential Parks (Long-stay Tenants) Act 2006 - IS listed. Yet the CMCA policy cites the wrong Act, and Council endorsed the CMCA policy in the same decision (CM 26/05/117).

This is not a minor clerical error. The two Acts have completely different eviction mechanisms. The Residential Tenancies Act does not govern caravan park long-stay tenants in WA. The Residential Parks Act requires SAT involvement to physically remove a long-stay tenant. By presenting a policy under the wrong Act, the self-help eviction mechanism (21-day notice to vacate, served by CMCA) appears legally supportable when in fact it is not.

Mallett's report simultaneously acknowledged the correct law and endorsed a policy that violated it.

3. WHY WOULD THE SHIRE ACCEPT A POLICY CITING THE WRONG LAW?

The documents support several possible explanations, each with different implications.

EXPLANATION A - NEGLIGENCE / INADEQUATE REVIEW

Officers (Mallett and Long) failed to cross-check the text of the CMCA policy against the Statutory Environment they themselves identified. In a 5-page policy document, the wrong Act citation appears on Page 1, Section 1. A basic legal review would have caught it. This would constitute a failure of the duty of care officers owe to Council and to community members affected by the decision. Council voted on a policy with an incorrect legal foundation without being advised of the discrepancy.

EXPLANATION B - DELIBERATE AVOIDANCE OF THE PARKS ACT

The Residential Parks (Long-stay Tenants) Act 2006 gives long-stay tenants procedural protections: a park operator cannot physically remove a tenant without a SAT order; the minimum notice required under the Parks Act significantly exceeds 21 days; and the Act was under statutory review (meaning its requirements may be strengthened, not weakened). Citing the Residential Tenancies Act instead frames the eviction under a regime that appears to permit self-help removal without SAT involvement. If this was deliberate, it constitutes the provision of misleading advice to councillors and potentially misrepresentation to affected residents.

EXPLANATION C - DEFERRED TO CMCA WITHOUT INDEPENDENT LEGAL REVIEW

The Shire may have accepted CMCA's policy as-is, treating CMCA as the operational expert and not subjecting the policy to independent legal scrutiny. The consultation section of Item 10.4.2 does not include a Shire solicitor or external legal adviser. There is no "Legal Advice Obtained" field in the officer report. A local government with a caravan park licence endorsing a policy affecting long-stay tenants without obtaining legal advice represents a significant governance failure.

EXPLANATION D - THE REVIEW AS COVER

Both Mallett's April and May 2026 reports acknowledged the Parks Act review was pending. One possible reading is that officers deliberately avoided engaging with the Parks Act because they knew it was potentially in flux - but this does not explain citing the wrong Act. It suggests officers wanted to act before the review reported, while distancing themselves from the Act most likely to protect the residents.

IN COMBINATION

The most likely explanation is A and C together: officers trusted CMCA's document without checking it against their own identified statutory framework, and no independent legal review was obtained. Whether this was also deliberately convenient (B) requires further evidence - but the effect on affected residents is the same regardless of intent.

4. CMCA'S LEGAL STANDING TO PRESENT DOCUMENTS TO THE SHIRE

CMCA has no independent statutory authority. It is a contractor operating a Shire-owned facility under a management agreement (MOU). It does not hold the caravan park licence. It cannot

create legally binding policy that overrides the Residential Parks (Long-stay Tenants) Act 2006 or any other statute.

What CMCA presented to the Shire (through Mallett as the officer intermediary) was an internal operational document that it framed as lawful policy. The Shire's endorsement does not make an unlawful policy lawful.

KEY GOVERNANCE QUESTIONS this raises:

Q1: Did the MOU authorise CMCA to draft eviction policies independently?

The 2022 MOU explicitly states "Long term tenants will remain the responsibility of the Shire." If the MOU did not authorise CMCA to create independent eviction/occupancy policies, CMCA may have acted outside the scope of its management agreement. The Shire's adoption of a CMCA-drafted policy for residents who are "the responsibility of the Shire" is potentially a breach of the Shire's own MOU obligations.

Q2: Did CMCA obtain independent legal advice before drafting the policy?

Unknown. No legal advice is referenced in the council documents. If CMCA drafted and presented a policy citing the wrong Act without legal advice, this is a serious failure by CMCA as a national organisation managing a licensed facility.

Q3: What is the unnamed "Manager of Business & Development, CMCA"'s role?

This person was the primary CMCA officer involved in preparing or endorsing the policy. Their identity and qualifications to advise on WA tenancy law are not disclosed. This is a question worth raising formally.

Q4: Did CMCA's presentation of a legally incorrect policy mislead the Shire?

Whether intentional or not, presenting a policy citing the wrong Act to Council, where councillors voted to endorse it, had the practical effect of misleading the decision-making body about the legal framework. A Council decision made on incorrect legal information may be challengeable.

Q5: Can the Shire rely on CMCA's policy to justify its own actions?

No. The Shire is the licensed party. The Shire cannot delegate its statutory obligations to CMCA. The Shire's endorsement of an incorrect legal framework does not transfer liability to CMCA - it compounds the Shire's own exposure.

5. COMPLAINTS AVAILABLE TO COMMUNITY AND AFFECTED RESIDENTS

5A. COMPLAINTS ABOUT CEO AND OFFICERS

DLGIRS (Department of Local Government, Industry Regulation and Safety)

DLGIRS is the State Government department responsible for local government oversight.

Complaints about the conduct of local government officers and CEOs can be made to DLGIRS.

- Basis: failure to provide accurate legal advice to Council; endorsing a policy under the wrong Act; failure to obtain independent legal review before advising Council to adopt an eviction mechanism for long-stay residents.

- Contact: <https://www.dlgsc.wa.gov.au/local-government/local-governments/complaints>

- Note: This is the same department conducting the Parks Act statutory review, which strengthens the complaint's relevance.

WA Ombudsman

The Ombudsman can investigate improper administrative conduct by local government officers.

- Basis: failure to properly advise Council; procedural unfairness to affected residents; failure to comply with MOU obligations regarding long-term residents.

- Contact: <https://www.ombudsman.wa.gov.au>

Formal Complaint to the Shire

The Shire has a complaints procedure. A formal written complaint addressed to the Shire President (Cr Helen O'Connell) regarding officer conduct (not CEO conduct) would be handled by the CEO. A complaint about the CEO specifically should go to the Shire President directly.

- This creates a formal paper trail even if the outcome is not immediately favourable.

5B. COMPLAINTS ABOUT COUNCILLORS

Local Government Standards Panel (LGSP)

The LGSP handles complaints about elected member conduct under the Local Government (Rules of Conduct) Regulations 2007.

- Relevant issue: Whether councillors voted on a policy without being properly informed of the correct legal framework. However, the LGSP focuses on conduct, not on the quality of decisions. This avenue is weaker unless there is evidence a councillor had a conflict of interest or violated the rules of conduct.

- Contact: <https://www.dlgsc.wa.gov.au/local-government/local-governments/standards-panel>

5C. COMPLAINTS ABOUT CMCA / THE PARK

Consumer Protection WA

Consumer Protection WA administers the Residential Parks (Long-stay Tenants) Act 2006 and is conducting the current statutory review.

- Basis: A park management operating under a licensed facility has presented a policy to the Shire citing the wrong Act and then used that policy to serve 21-day eviction notices on long-stay residents who may have protections under the Parks Act.

- This is directly within Consumer Protection's jurisdiction and is highly relevant to their current review.

- Contact: <https://www.consumerprotection.wa.gov.au/residential-parks-law-review>

- Phone: 1300 30 40 54

Caravan Parks and Camping Grounds Act 1995 inspectors (DLGIRS)

Under the Caravan Parks and Camping Grounds Act 1995, authorised officers can investigate compliance at licensed facilities. A complaint that a park is being operated in a manner inconsistent with its licence (including by a non-licensed party serving eviction notices that the licensed party - the Shire - has not properly authorised in accordance with applicable law) may trigger an inspection.

5D. SPECIFIC QUESTION FOR FORMAL COMPLAINTS OR FOI

The following questions should be put to the Shire formally, either by written request, at public question time at the 25 June 2026 OCM, or via FOI:

1. Did the Shire obtain independent legal advice before endorsing the CMCA Guest Stay Policy (CM 26/05/117)? If so, what was the advice and from whom?

2. Why does the Shire's own officer report (Item 10.4.2, 28 May 2026) list the Residential Parks (Long-stay Tenants) Act 2006 as applicable legislation, while the CMCA policy endorsed in the same decision cites the Residential Tenancies Act instead?

3. Does the MOU between the Shire and CMCA (2022) authorise CMCA to independently draft and implement eviction policies for long-stay residents, given that the MOU states "Long term tenants will remain the responsibility of the Shire"?

4. Who is the "Manager of Business & Development, CMCA" listed as a consultee in Item 10.4.2, and did this person provide legal advice to the Shire?

5. Has the Shire obtained legal advice on whether the 21-day notice issued by CMCA complies with the Residential Parks (Long-stay Tenants) Act 2006?

These questions can be submitted as public questions under s.5.24 of the Local Government Act 1995, which entitles members of the public to ask questions at OCMs. The next OCM is 25 June

2026 - after the eviction deadline. Written questions could be submitted now for response at that meeting, and the Shire is required to respond (either at the meeting or in writing).

6. SUE WHITE'S QUESTION 4 - PUBLIC RECORD SIGNIFICANCE

From the May 28 minutes (p8-9), Sue White asked at public question time:

"Since the Shire is having trouble with the new terms of occupancy of Caravan Parks, and the fact that a lot of our CMCA residents are local workers, surely the completion of repairs and renewal/reuse of this area [Barracks buildings] would help to solve the problem."

The Shire's response made no connection between the Barracks/housing matter and the caravan park issue. This is notable because the Shire was simultaneously endorsing evictions of local workers from the caravan park (Item 10.4.2) while offering no alternative accommodation solutions. Sue White's question puts on the public record that community members had identified the causal link between housing shortage and caravan park long-stay demand - and the Shire's response did not address this.

This could be used in advocacy to show the Shire endorsed evictions of essential workers without identifying alternative accommodation, in a community where the Shire acknowledged housing availability was the driver of the long-stay demand.

7. DARREN LONG AS FINANCE CONSULTANT - GOVERNANCE NOTE

The May 28 OCM (Item 10.3.2, p22) confirms Darren Long holds the title "Finance Consultant" and authored the Monthly Financial Report for 30 April 2026 presented to the May 28 meeting. He is also co-author of Item 10.4.3 (Long-Term Financial Plan, withdrawn).

CEO Leonard Long's surname is the same. Whether this represents a family relationship cannot be confirmed from the council documents alone. However, if Darren Long is a relative of the CEO, the engagement of a Finance Consultant with the same surname as the CEO - without any Declaration of Interest noted in any of the items he authored - raises a governance question under s.5.65 of the Local Government Act 1995 (disclosure of interests by employees).

Declaration of Interest sections in both items where Darren Long is named as author show: "Nil."

This is a question worth putting to the Shire or to DLGIRS as part of a broader governance concern, but cannot be stated as a confirmed conflict without verifying the relationship.

8. CMCA'S OWN WEBSITE CONFIRMS 3-MONTH MAXIMUM STAY

SOURCE: CMCA Parks website, Flax Mill Caravan Park Boyup Brook, accessed 15 June 2026.
URL: <https://parks.cmca.au/park/boyup-brook>

The CMCA website for this park states under "Important information":

"Maximum stay: Up to 3 months at a time, not exceeding 6 months in any 12-month period"

The same page under "Park rules" states:

"No permanent camping. Max stay length is 3 months in any 12 month period."

NOTE: These two statements on the same page are internally inconsistent - one allows 6 months cumulative (3+3), the other caps stays at 3 months total in any 12 months. This is an internal CMCA inconsistency.

WHY THIS MATTERS FOR THE 21-DAY NOTICE:

CMCA publicly advertised stays of up to 3 months. Under the Residential Parks (Long-stay Tenants) Act 2006 (WA), a person who occupies a site for more than 3 months becomes a "long-stay tenant" entitled to the Act's protections, including the requirement for SAT involvement before physical removal.

Any resident who stayed for more than 3 months under the terms CMCA itself publicly advertised:

- (a) became a long-stay tenant under the Parks Act by operation of law
- (b) cannot be removed by 21-day self-help notice
- (c) has the right to remain until SAT orders otherwise

CMCA cannot simultaneously advertise 3-month stays and issue a 21-day notice to vacate. The 21-day notice is inconsistent with CMCA's own published terms. This is an additional basis on which affected residents can challenge the notice - CMCA's own website is evidence of the contractual/occupancy terms they were offered.

The website also advertises "unpowered riverfront sites" as bookable park sites. If CMCA is now commercially booking riverfront sites that the community previously had unrestricted access to, this represents the commercialisation of what may be a public access area on Crown reserve land, without community consultation.

Park Custodian contact: 0460 639 965 (listed on the CMCA website - this is the custodian who reportedly stated "if it wasn't for us you wouldn't have this place").

CITATION SUMMARY

All sources from: Shire of Boyup Brook Ordinary Council Meeting Minutes, 28 May 2026 (unconfirmed, to be confirmed at 25 June 2026 OCM). Author of Item 10.4.2: Carolyn Mallett, EMCS. Council Decision CM 26/05/117, carried 7/0.

CMCA Guest Stay Policy source: Attachment 10.4.2A to the above minutes, document ref CMCA-GSP-FMB-001 v1.0, April 2026, "Prepared By: CMCA Parks."

Wrong Act citation: Section 1 (Purpose) of the CMCA policy cites "the Residential Tenancies Act." The correct Act for long-stay caravan park tenants in WA is the Residential Parks (Long-stay Tenants) Act 2006.

Mallett's own statutory environment: Item 10.4.2, p35 of the May 28 OCM minutes. Lists Residential Parks (Long-stay Tenants) Act 2006 as applicable. Does NOT list the Residential Tenancies Act.